



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 46TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD VIA VIRTUAL REMOTE SESSION (ONLINE PLATFORM) IN DAET, CAMARINES NORTE ON THE 13TH DAY OF DECEMBER, 2021 AT 9:04 A.M.

PRESENT:

HON. ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT
HON. TOMASITO SANTIAGO C. TURINGAN
HON. APOLONIO B. PANONG
HON. FELIX C. ABAÑO
HON. WILLIAM CARLO R. AVILA

HON. MARLON T. BANDELARIA
HON. ROSSANO C. VALENCIA
HON. NESTOR F. DALIDA
HON. PEDRO S. MUSA-LNB
HON. JUDY ROSE T. GALLARDO-SKMF

ABSENT:

NONE

Resolution No. 388-2021

RESOLUTION ADOPTING AN ORDINANCE INSTITUTIONALIZING THE BUSINESS DEVELOPMENT OFFICE (BDO) IN THE MUNICIPALITY OF DAET, CAMARINES NORTE, CREATING REGULAR PLANTILLA POSITION THEREOF, PROVIDING FOR ITS DUTIES AND FUNCTIONS, AND ALLOCATING FUNDS FOR ITS OPERATION

WHEREAS, the implementation of Local Government Code of 1991 mandates the local government units to exercise powers and discharge such other functions and responsibilities as are necessary, appropriate or incidental to efficient and effective governance such as providing their constituents the basic services and facilities which include, but are not limited to the following: (a) agricultural extension and on-site research services and facilities, assistance in the organization of farmers' and fishermen's cooperatives and other collective organizations, as well as the transfer of appropriate technologies; (b) industrial research and development; and (c) investment support services, including access to credit financing;

WHEREAS, same Code provides that every local government unit shall design and implement its own organizational structure and staffing pattern taking into consideration its service requirements and financial capability, subject to the minimum standards and guidelines prescribed by the Civil Service Commission;

WHEREAS, the enactment of various national laws with an objective to strengthen local economy through local product and business development, investment generations,

entrepreneurs' promotions and the likes were cascaded in the local government units to ensure its implementation;

WHEREAS, among the enacted national laws are Republic Act No. 9501 also known as the "Magna Carta For Small Enterprises" and Republic Act No. 10644 otherwise known as the "Go Negosyo Act" which prompted the establishment of Go Negosyo Center in the LGUs. Moreover, the establishment of Technology and Livelihood Development Center (TLDC) and Local Economic and Investment Promotions Office (LEIPO) pursuant to DILG MC Nos. 2007-67 and 2010-113, respectively implements the same nature of function and services;

WHEREAS, there is a need to institutionalize the Business Development Office in the LGU Daet to merge and unify the functions of Go Negosyo Center, Local Economic and Investment Promotion Office (LEIPO) and Technology and Livelihood Development Center (TLDC) to consolidate the services of three (3) offices towards economic and equitable provision of business and livelihood development services in the locality;

NOW THEREFORE, after due deliberation, on motion of Councilor Ma. Eliza H. Llovit, with Councilors Felix C. Abaño, William Carlo R. Avila and Apolonio B. Panong as co-movants, seconded by Councilors Pedro S. Musa, Nestor F. Dalida, Rossano C. Valencia and Tomasito Santiago C. Turingan;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 441-2021

AN ORDINANCE INSTITUTIONALIZING THE BUSINESS DEVELOPMENT OFFICE (BDO) IN THE MUNICIPALITY OF DAET, CAMARINES NORTE, CREATING REGULAR PLANTILLA POSITION THEREOF, PROVIDING FOR ITS DUTIES AND FUNCTIONS, AND ALLOCATING FUNDS FOR ITS OPERATION

BE IT ORDAINED, by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. TITLE. This Ordinance shall also be known as "Ordinance Institutionalizing the Business Development Office" in Daet, Camarines Norte.

SECTION 2. DECLARATION OF POLICY. It Is hereby declared policy of the Municipality of Daet, Camarines Norte to enhance local economy that will generate livelihood and employment opportunities for the promotion of inclusive growth and reduce poverty through different investment promotion advocacies, comprehensive entrepreneurial packages, integrated and unified business processing system, micro, small and medium enterprise development, data banking system, among others which is accessible to its constituents through a fully institutionalized office in the municipal government.

SECTION 3. LEGAL BASIS. The following existing laws mandate the services of Technology and Livelihood Development Center, Local Economic Investment and Promotion Office, and Go Negosyo Center:

- a) Republic Act No. 11032 – An Act Promoting Ease of Doing Business
- b) Republic Act No. 10644 – An Act Establishing the Creation of Negosyo Center
- c) Republic Act No. 9509 – Barangay Livelihood and Skills Training



- d) Republic Act No. 9501 – Magna Carta for Micro, Small and Medium Enterprises (MSMEs), as amended
- e) Republic Act No. 9178 – Barangay Micro Business Enterprises (BMBEs) Act of 2002
- f) DILG MC 2020-167 – Expansion of LEIPO into Local Economic Development and Investment Promotions Office (LEDIPO)
- g) DILG MC 2017-16 – Requiring LEIPO in the Seal of Good Local Governance Criteria
- h) DILG MC 2010-113 – Creation of Local Economic Investment and Promotion Office (LEIPO) in the municipal and provincial governments
- i) DILG MC 2007-67 – Establishment and Institutionalization of Technology and Livelihood Center in the Philippines
- j) EO No. 138 s. 2021 – Among the devolved functions of the Department of Trade and Industry transferred to LGUs is the Information Services on Investment Information Systems

SECTION 4. DEFINITION OF TERMS. As used in this Ordinance, the following acronyms shall mean as follows:

- a) MSMEs – refers to micro, small, medium enterprises;
- b) TLDC – refers to the Technology and Livelihood Development Office;
- c) LEIPO – refers to the Local Economic and Investment Promotion Office;
- d) BDO – refers to the Business Development Office;

SECTION 5. INSTITUTIONALIZATION OF OFFICE. The Technology and Livelihood Development Center (TLDC), Local Economic Investment and Promotions Office (LEIPO) and Go Negosyo Center of the Municipal Government of Daet, Camarines Norte is hereby institutionalized as one (1) office to be known as Business Development Office (BDO) under the control and supervision of the Local Chief Executive.

SECTION 6. DUTIES AND SERVICES OF THE BDO. The Business Development Office (BDO) shall be the frontline in steering the creation of a business enabling environment to attract, retain or expand investment in the municipality to create employment, promote the business-friendliness and competitiveness of the LGU. Specifically, the office shall perform the following duties and services:

- a) Advocate and promote policies and practices that will encourage local investments through support and facilitation assistance for prospective and new investors;
- b) Establish and maintain a local economic database containing relevant facts and figures on the local economy to be able to provide information about business potentials of the LGU including its services to prospective investors to attract more investment to flow in the locality;
- c) Assist in the promotion and development of MSMEs in the locality, as well as other potential investors;
- d) Encourage Private-Public Partnership (PPP);



- e) Establish and maintain partnership with other national government agencies, private and business sectors, academe, local councils and other stakeholders in the implementation of programs, projects and activities that will promote the business-friendliness and competitiveness of the LGU;
- f) Provide necessary interventions to harness, develop and accelerate socio-economic growth through: Technology and Livelihood Information Dissemination, Technology and Livelihood Training, Application of appropriate technologies that generate livelihood opportunities, and Technical and Program management support;
- g) Establish feedback mechanism in the municipality with regards to investment promotion, livelihood and entrepreneurship program to monitor project implementation, research and policy studies and dissemination campaigns;
- h) Represent the municipality in different trade and investment meetings, conferences, and other similar activities;
- i) Conduct other programs or projects for entrepreneurial development in the municipality aligned with the national and local development plan;
- j) Provide secretarial support services to different local councils related to investment and enterprise promotion; and
- k) Supervise the operation of LGU-Daet training facilities such as: Kalinangan Center and Pinyasan Kiosk.

SECTION 7. STAFFING PATTERN, QUALIFICATION STANDARDS AND ORGANIZATIONAL STRUCTURE. To ensure the facilitation and coordination of local economic development and investment promotion advocacies of the LGU, the hereunder staffing pattern, qualification standards and organizational structure of BDO is created:

A. Staffing Pattern:

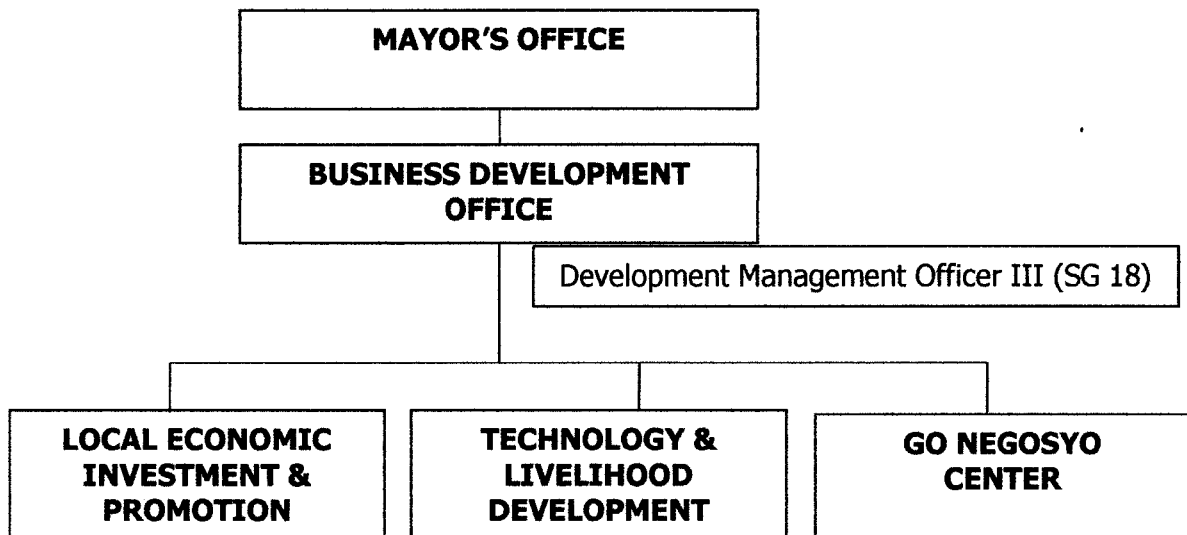
Position Title	Salary Grade	Qualification Requirement
Development Management Officer III	18	1. Bachelor's degree relevant to the job 2. 2 years of relevant experience 3. 8 hours of relevant training 4. Career Service (Professional) or Second Level Eligibility

There shall be additional support staff in BDO under Job Order employment to perform the following tasks:

- 1. **Clerical** – who shall perform a number of straight clerical duties related to typing work, filing and answering calls and queries, and relaying messages, and other related job as may be required.
- 2. **Liaison** – who shall collect and delivers inter-and-intra-office communications, operates simple reproduction machines, and other related job as may be required.
- 3. **Barangay Trade and Livelihood Coordinators** – who shall perform coordinating services in the barangay related to barangay MSMEs, livelihood trainings, marketing assistance, and other related job as may be required.



B. Organizational Structure



SECTION 8. DUTIES AND FUNCTION OF DEVELOPMENT MANAGEMENT OFFICER III. The appointment of the Development Management Officer III shall be permanent who shall take charge of the Business Development Office and shall:

- a) Supervise and coordinate activities of office staff and designated barangay trade and livelihood coordinators in the community. Serve as lead coordinator between top management and personnel concerned;
- b) Provide and implement trainings, consultations, product developments, and direction to MSMEs in improving their business and products;
- c) Develop proposals, trainings, modules, program database, annual and medium-term plans for MSMEs and creating standards and procedures for ease of doing business;
- d) Supervise application of registration for Business Names, Barangay Micro Business Enterprises and facilitate local business applications;
- e) Review, evaluate and interpret records, reports, and other data affecting investment plans, business processing, existing policies of business services in order to enhance the business climate to attract investors and to support existing business thus improving further economic growth of the locality;
- f) Perform other duties and functions that may be assigned by the Municipal Administrator or Municipal Mayor and as may be required by law.

SECTION 9. FUNDING. The amount necessary for the personnel services of the created plantilla positions and the maintenance, and other operating expenses of the office shall be appropriated annually under the Office of the Mayor beginning FY 2022.

SECTION 10. SEPARABILITY CLAUSE. If any reason any part or provision of this ordinance shall be held to be unconstitutional or invalid, other parts or provisions hereof which are not affected thereby shall continue to be in full force and effect.

SECTION 11. REPEALING CLAUSE. All any ordinances, rules and regulation found inconsistent with any provision of this ordinance are hereby repealed and amended accordingly.

SECTION 12. EFFECTIVITY. This ordinance shall take effect upon approval.

ENACTED.

RESOLVED FURTHER, to furnish copies hereof all concerned for their information and appropriate action.

CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing.


MARIA BUENA FE Z. LUARES
Secretary to the Sangguniang Bayan


COUN. MA. ELIZA H. LLOVIT
Proponent

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA

Municipal Mayor

Date: DEC 17 2021